MWANCHA SENIOR COMMUNITY (MSC)
Institutional Eldercare & Social Protection Repository • Kenya

CIVIC LEGAL GUIDE

Handbook on Senior Citizen Rights & Safeguards in Kenya

A Citizen's Guide to the Kenyan Constitution (Article 57), Succession Law, and Human Rights

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Role: Civic Education & Rights Advocacy
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EXECUTIVE ABSTRACT & SUMMARY

An accessible legal and civic handbook explaining constitutional protections for older persons under Kenyan law, succession procedures, defense against unfair property seizure, and grievance reporting mechanisms.

Section 1: Article 57 of the Constitution of Kenya

Article 57 specifically commands the State to take legislative and policy measures ensuring older persons: (a) participate fully in society, (b) pursue personal development, (c) live in dignity, respect, and free from abuse, and (d) receive reasonable care and assistance from family and the State.

Section 2: Safeguarding Land & Family Inheritance

Elderly widows and frail grandparents are most vulnerable to fraudulent land transfers and coerced signatures. This guide outlines how title deeds can be registered with family cautions and caveats at county land registries to prevent illegal dispossession.

Section 3: Reporting Abuse & Accessing Emergency Relief

Provides emergency hotline numbers, police gender & vulnerable persons desks, and MSC field coordination hotlines for immediate community response.

Statutory References & Citizen Legal Aid Sources

Legal Citations & Citizen Referral Hotlines:
1. The Constitution of Kenya (2010), Article 57 (Rights of Older Members of Society), Article 27 (Equality and Freedom from Discrimination), and Article 48 (Access to Justice). Kenya Law Reports (kenyalaw.org).
2. Law of Succession Act (Chapter 160, Laws of Kenya), Provisions on Invalidation of Coerced Wills and Intestate Succession for Surviving Spouses.
3. Land Registration Act (No. 3 of 2012, Laws of Kenya), Section 76: Lodging Cautions and Restrictions Against Fraudulent Land Transfers at County Land Registries.
4. Penal Code (Chapter 63, Laws of Kenya), Offenses Related to Assault, Intimidation, and Violent Eviction.
5. National Legal Aid Service (NLAS), Ministry of Justice and Constitutional Affairs: Subsidized Legal Representation for Indigent Older Persons.
6. National Police Service (NPS) Gender and Vulnerable Persons Desks, Nyamira County Command.

About Mwancha Senior Community (MSC)

Mwancha Senior Community (MSC), founded in 2016 as Mwancha Home for the Elderly and legally registered under the Societies Act of Kenya, is dedicated to defending the dignity, health, and holistic wellbeing of vulnerable older persons in Kenya.

Through our community care center and network of 40 active ward-based volunteers across Nyamira and Kisii counties, MSC delivers compassionate home check-ins, medical escorts, emergency nutrition, and legal defense against elder abuse and property dispossession.

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